

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

(5) Absence of subsequent felony convictions, misdemeanor convictions, or other conduct that provides grounds to discipline a real estate licensee, which reflect an inability to conform to societal rules when considered in light of the conduct in question.

Here, petitioner has established slight rehabilitation through the passage of time and engagement in AA. However, his refusal to express remorse for his conduct expresses he has not fully rehabilitated. (*Seide v. Committee of Bar Examiners* (1989) 49 Cal.3d 933, 940.)

Accordingly, petitioner's writ of mandamus is denied.

15. S-PR-0005952 JULIUS, IRENE - IN RE THE TRUST OF

Amended Motion for an Order for the Assignment of Rights to Payment and Related Relief

On October 7, 2014, the court found in favor of Jamey Julius and entered judgment against Ami Baldin for abusing her position as trustee. Ami Baldin is married to Adam Baldwin.

In 2024, Jamey Julius renewed the judgment for \$337,797.68 and assigned his rights to the judgment to Crystal Bergstrom.

Crystal Bergstrom, the assigned judgment creditor, moves for an order for the assignment of rights to payment and related relief pursuant to Code of Civil Procedure section 708.510.

Courts—upon an application of the judgment creditor on noticed motion—“may order the judgment debtor to assign to the judgment creditor or to a receiver appointed . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments. . . .” (Code Civ. Proc., § 708.510, subd. (a).) The statute provides a non-exhaustive list of payments that may be assigned, including: “(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. (2) Rents. (3) Commissions. (4) Royalties. (5) Payments due from a patent or copyright. (6) Insurance policy loan value.” (*Id.* at subd. (a)(1)–(6).) Any right to payment assigned must only be to the extent necessary to satisfy the money judgment. (*Id.* at subd. (d).)

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Moreover, the motion must be served on the judgment debtor either personally or by mail. (Code Civ. Proc., § 708.510, subd. (b).)

To determine “whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following:

- (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.
- (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.
- (3) The amount remaining due on the money judgment.
- (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.”

(Code Civ. Proc., § 708.510, subd. (c).)

Here, the court finds the noticed motion was properly served by mail on Ami Baldwin and Adam Baldwin. Moreover, the factors enumerated in Code of Civil Procedure section 708.510, subdivision (c) weigh in favor of assigning rights to payments due or to become due.

The court incorporates the findings in the proposed order lodged with the court on May 15, 2026.

Moreover, Ami Baldwin and Adam Baldwin are restrained from assigning or otherwise disposing of the right to payments that are assigned. (Code Civ. Proc., § 708.520.)

Finally, Ami Baldwin and Adam Baldwin shall file a declaration with the court at 90-day intervals detailing all payments subject to the Assignment Order that are due, will become due or have been paid to them from any Obligor to the Baldwin’s or on their behalf to third parties during the relevant time period. Said accounting to include the date, amount and persons’ names and addresses of all persons paying the monies to the Baldwins, (or on their behalf) and, if monies are paid on the Baldwins behalf to third parties, the names and addresses of said third parties.

The order after hearing shall be personally served on Ami Baldwin and Adam Baldwin.